

	2007-00100307	calendar relating to the bankruptcy petition filed by defendant Bruce Elieff (Defendant). Based on the declaration of Plaintiff's counsel, Benjamin Sosnick, filed on July 30, 2026, as ROA 3132, the stay of this matter must remain based upon the pendency of Defendant's bankruptcy petition. The motion and the status conference therefore are CONTINUED TO THURSDAY, FEBRUARY 4, 2027, AT 2:00 P.M., IN DEPARTMENT C23. Plaintiff's counsel is ordered to file a declaration regarding the status of Defendant's bankruptcy proceeding no later than 10 court days before the continued hearing date which should include information regarding the stage of the proceedings, upcoming hearings, and any estimate regarding resolution. Assuming the stay is lifted, the attorney fee motion likely will not proceed on the February 4, 2027, but rather will be set for a future hearing date and the possibility of further briefing, if necessary. Plaintiff's counsel is further ordered to give notice of this ruling.
15.	<i>Family Investment Company, Inc. vs. Mach-1 Autogroup</i> 2009-00126504	Before the court are the following two motions filed on April 17, 2026: (1) motion by judgment debtor Marc Spizzirri (Marc) to quash purported deposition subpoena on third party Glass Ratner Advisory & Capital Group, LLC (Glass Ratner); request for monetary sanctions, and (2) motion by judgment debtor Candace Spizzirri (Candace; together with Marc collectively referred to as Judgment Debtors) to quash purported deposition subpoena on third party Gnome Road Publishing (Gnome Road); request for monetary sanctions. As more fully set forth below, both motions are GRANTED and the subpoenas served on Glass Ratner and Gnome Road are ordered QUASHED. Judgment Debtors are correct the subpoenas at issue, which are for pre-trial discovery, were not properly issued in this post-judgment context. The Civil Discovery Act applies to discovery in postjudgment enforcement proceedings only to the extent provided in Code of Civil Procedure sections 708.110 to 708.130. (<i>Shrewsbury Mgmt., Inc. v. Superior Court</i> (2019) 32 Cal.App.5th 1213, 1223.) Under section 708.130, that includes the use of a subpoena duces tecum to access relevant documents, in the same manner as at trial. (<i>Id.</i> at pp. 1223-1225.) But the subpoenas at issue are not subpoenas for trial – they are for pre-trial discovery. (ROAs 2031 and 2032, at Exh. 1.) As they fail to meet the requirements under Code of Civil Procedure section 708.030, they are invalid here.

		In addition, as Judgment Debtors' counsel was not served with the subpoenas (ROAs 2041 and 2047, at ¶¶ 4, 5), notice for the subpoenas also was defective. The motions to quash are therefore GRANTED. Both sides' sanctions requests are DENIED. Although Judgment Debtors are the prevailing parties on these motions, neither included a proper sanctions request in their notice of motion to identify against whom sanctions are sought, in what amount, and on what authority. Assertions unsupported by legal authority are presumed to lack merit. (<i>Atchley v. City of Fresno</i> (1984) 151 Cal.App.3d 635, 647.) All requests for sanctions on these motions are therefore DENIED. Counsel for Judgment Debtors is ordered to give notice of these rulings.
16.	<i>Kaiser Foundation Health Plan vs. Sharp Memorial Hospital</i> 2026-01566981	Before the court is the continued hearing on three motions the parties have filed seeking to seal a variety of documents relating to the petition to confirm the underlying arbitration award and the opposition thereto. <u>Respondents' Motion to Seal</u> On July 9, 2026, the court first heard the motion of respondents Sharp Memorial Hospital, Sharp Coronado Hospital & Healthcare Center, Sharp Chula Vista Medical Center, and Grossmont Hospital Corporation dba Sharp Grossmont Hospital (collectively, Respondents) to seal portions of the opposition brief and supporting documents they filed in response to the petition to confirm the arbitration award filed by petitioner Kaiser Foundation Health Plan (Petitioner). At that time, the court continued the motion to today because (1) Respondents had not filed under seal or otherwise lodged unredacted versions of the documents they sought to seal, and (2) the court was not convinced the proposed redactions/sealing was sufficiently narrowly tailored to meet the requirements of the Rules of Court. Respondents have now filed some supplemental documents in support of their motion to seal. First, they have filed a sealed version of the declaration of Daron L. Toooh in support of the opposition to the petition to confirm that includes the Toooh declaration and the exhibits thereto without any redactions. Second, they have provided a supplemental declaration of David J. Tassa that attaches a new proposed, public version of the Toooh declaration. The new Toooh declaration now includes many of the exhibits to his declaration that were omitted from the original Toooh